

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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MARTIN BLEIWAS,

Plaintiff,

-against-

**AMENDED
COMPLAINT**

15 CV 10046 (ER)

Jury Trial Demanded

CITY OF NEW YORK, LEON LIAN, Individually, ALFREDO TORRES, Individually, GEORGE GOMEZ, Individually, MIRIAM LORENZO, Individually, DENNIS BOWMAN, Individually, CHRISTOPHER KENNIS, Individually, ESTHER BUENO, Individually, CARL LAI, Individually, WOJCIECH LIPINSKY, Individually, PIERRE BARBEE, Individually, JOHN HAND, Individually, and JOHN and JANE DOE 1 through 10, Individually (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

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Plaintiff MARTIN BLEIWAS, by his attorneys, Brett H. Klein, Esq., PLLC, complaining of the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. §§ 1983, and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff MARTIN BLEIWAS is a sixty-three-year-old man residing in Baldwin, New York. Mr. Bleiwas is a retired New York City Correction Officer, as well as a former 911 EMS dispatcher for the City of New York. He is a father of two, a devoted husband, and an aficionado and collector of law enforcement radios.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants, LEON LIAN, ALFREDO TORRES, GEORGE GOMEZ, MIRIAM LORENZO, DENNIS BOWMAN, CHRISTOPHER KENNIS, ESTHER BUENO, CARL LAI, WOJCIECH LIPINSKI, JOHN HAND, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their

official duties.

10. That at all times hereinafter mentioned, defendant PIERRE BARBEE was employed by defendant CITY OF NEW YORK as a NYPD supervisor radio technician and was acting under the supervision of said department according to his official duties.

11. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

13. On April 9, 2015, at approximately 6:00 a.m., plaintiff was at his place of residence, located at 2374 Fox Ave, Baldwin, New York, when he received a phone call from defendant Sergeant LEON LIAN of the Internal Affairs Bureau (“IAB”) of the New York City Police Department (“NYPD”).

14. Defendant LIAN told plaintiff to come downstairs and to open his front door.

15. Plaintiff complied and, upon opening his door, observed defendant LIAN, along with Deputy Inspector MIRIAM LORENZO, Lieutenants DENNIS BOWMAN and CHRISTOPHER KENNIS, Sergeant GEORGE GOMEZ, and Detectives ALFREDO TORRES, ESTHER BUENO, CARL LAI, and WOJCIECH LIPINSKI, all assigned to the NYPD IAB.

16. Defendants LIAN, TORRES, GOMEZ, LORENZO, BOWMAN, KENNIS,

BUENO, LAI, and LIPINSKI all entered plaintiffs home.

17. LIAN, BOWMAN, KENNIS, GOMEZ, TORRES, BUENO, LAI, and LIPINSKY proceeded to execute a search of plaintiff's home and garage.

18. During the search, defendant Deputy Inspector LORENZO detained plaintiff in his living room.

19. Pursuant to the search, the officers confiscated approximately 233 portable radios which had been decommissioned and relinquished by the NYPD approximately 21 years prior. They were in fact lawfully sold at a City auction that was open to the public, and thereafter lawfully purchased by plaintiff.

20. In addition to the radios, the defendants removed plaintiff's personal computer, his cell phone, storage drives, and a camera.

21. The defendants also confiscated plaintiff's duly licensed and otherwise lawfully possessed firearms.

22. A number of items that were in the home when the search was conducted were missing after the search ended, including, without limitation: a pair of diamond earrings, a Bendix King portable radio, and a pair of Smith and Wesson handcuffs.

23. Despite the fact that the confiscated radios were lawfully sold through a City auction, and thus the City was on notice that the radios could be lawfully possessed by civilians, plaintiff was arrested without probable cause for purported criminal possession of stolen property. Furthermore, plaintiff repeatedly told the defendant officers present during the search and his arrest that he had receipts which proved that the radios were lawfully sold via a City auction and were lawfully possessed by him, however, plaintiff was ignored and arrested despite

the fact that he possessed proof of his lawful possession.

24. Pursuant to his arrest, defendants TORRES, along with another defendant officer, transported plaintiff from his home to the NYPD's 1st Precinct stationhouse in lower Manhattan.

25. Plaintiff was unlawfully imprisoned therein until approximately 2:00 p.m., when plaintiff was released with a desk appearance ticket, issued by defendant LIAN.

26. During this time in custody, plaintiff, a diabetic, required insulin and medication. When he was incarcerated inside the holding cell at the 1st Precinct, he felt symptoms of low blood sugar.

27. As a result of the issuance to plaintiff of the desk appearance ticket, plaintiff was compelled to appear in New York County Criminal Court, located in lower Manhattan, on June 1, 2015, when he was arraigned on baseless charges filed under docket number 2015NY030716; said charges having been filed based on the false allegations of defendant LIAN, which he swore to in a criminal court complaint filed against plaintiff. Defendant LIAN initiated said prosecution with malice and without probable cause.

28. LIAN created and manufactured false evidence against plaintiff and conveyed said evidence to the New York County District Attorney's Office causing a legal proceeding to be initiated against plaintiff and resulting in said evidence being used against plaintiff in the aforementioned legal proceeding.

29. Specifically, LIAN swore in the criminal court complaint filed under docket number 2015NY030716, that plaintiff purportedly possessed stolen property, despite the fact that there was no credible evidence to support this allegation, which was entirely false.

30. Defendants PIERRE BARBEE and JOHN HAND provided false evidence and

information to defendant LIAN, which was conveyed to the New York County District Attorney's Office, and which was used as the purported basis plaintiff's false arrest and in the legal proceeding initiated against plaintiff. In particular, prior to plaintiff's arrest, defendant LIAN arranged to buy a radio that plaintiff was lawfully selling on eBay. LIAN obtained the serial number of the radio, which he conveyed to HAND. BARBEE falsely and recklessly represented that all decommissioned radios that were salvaged were mechanically destroyed, a claim which is untrue. Even though HAND admittedly did not know how such decommissioned radios were disposed of in 1993, the year that plaintiff's radio was decommissioned (and later auctioned by the City), and notwithstanding that BARBEE could only confirm at best that the radio was salvaged, but had no knowledge of its disposition (i.e. whether it was sold by the City at auction), HAND, BARBEE and LIAN fabricated the conclusion that plaintiff's radio was stolen, even though no such evidence corroborating this reckless conclusion existed. This fabricated evidence – that plaintiff possessed *stolen* decommissioned radios – was completely false and otherwise asserted by the defendants with reckless disregard to plaintiff's clearly established rights. This led to the procurement of the above-described search warrant under false pretenses, and to plaintiff's needless arrest and prosecution.

31. The malicious prosecution and fabrication of evidence compelled plaintiff to return to New York County Criminal Court on June 24, 2015, and then again on September 9, 2015, on which date the purported charge of Criminal Possession of Stolen Property that was levied against plaintiff based on the false allegations of LIAN and the other defendants was dismissed and sealed.

32. The supervisory defendants LIAN, GOMEZ, LORENZO, BOWMAN, KENNIS,

and HAND directly participated in plaintiff's arrest, and supervised and otherwise oversaw their subordinate officers' participation in plaintiff's arrest, the search of his home, and the ensuing prosecution.

33. Defendants LIAN, TORRES, GOMEZ, LORENZO, BOWMAN, KENNIS, BUENO, LAI, LIPINSKI, HAND, BARBEE and JOHN and JANE DOE 1 through 10 were present for, provided information leading to plaintiff's arrest, or were otherwise aware of plaintiff's false arrest and that he would be prosecuted without evidence linking him to any criminal conduct, yet they supervised, participated in, and/or otherwise failed to intervene in plaintiff's arrest and prosecution despite a reasonable opportunity to do so.

34. Defendant NYPD officers LIAN, TORRES, GOMEZ, LORENZO, BOWMAN, KENNIS, BUENO, LAI, LIPINSKI and supervisor radio technician BARBEE owed a duty to plaintiff which they breached when they arrested plaintiff, provided information that led to plaintiff's arrest, or otherwise stood by or failed to intervene in plaintiff's arrest for criminal possession of items which they should have known were legally possessed, or at the very least had no credible reason to believe were stolen, and/or that plaintiff purportedly knowingly possessed stolen property, or committed any other crime or violation whatsoever.

35. As a result of the defendants' breach, plaintiff sustained injuries, including loss of liberty and emotional distress.

36. As a result of the foregoing, plaintiff's New York State armed security license, his Nassau County Police Department carry permit, and his New York City Police Department carry permit were suspended.

37. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees. Specifically, the City of New York has failed to train its police officers in the proper methods of investigation and the probable cause required to make an arrest, and too often engage in falsification to justify arrests for collateral objectives outside the ends of justice, including advancement on the job and/or to meet quotas and/or for overtime compensation.

38. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers are insufficiently trained regarding: proper methods of investigation, sufficient evidence to make an arrest, and that they engage in a practice of falsification.

39. In another civil rights action filed in this Circuit involving false allegations by NYPD officers, Senior Judge Jack B. Weinstein pronounced:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged. *Colon v. City of New York, et. al.*, 2009 WL 4263362, *2 (E.D.N.Y. 2009).

40. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

41. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

42. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

43. All of the aforementioned acts deprived plaintiff MARTIN BLEIWAS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

47. As a result of the foregoing, plaintiff MARTIN BLEIWAS sustained, *inter alia*,

pain and suffering, emotional distress, embarrassment, and humiliation, and deprivation of his liberty and his constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION

(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983 Against the Individually Named Defendants)

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “47” with the same force and effect as if fully set forth herein.

49. Defendants arrested plaintiff MARTIN BLEIWAS without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

50. Defendants caused plaintiff MARTIN BLEIWAS to be falsely arrested and unlawfully imprisoned.

51. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION

(Violation of Right to Fair Trial under 42 U.S.C. § 1983 Against the Individually Named Defendants)

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “51” with the same force and effect as if fully set forth herein.

53. Defendants created false evidence against plaintiff MARTIN BLEIWAS.

54. Defendants utilized this false evidence against plaintiff MARTIN BLEIWAS in

legal proceedings.

55. As a result of defendants' creation and use of false evidence, plaintiff MARTIN BLEIWAS suffered a violation of his constitutional rights to a fair trial, as guaranteed by the United States Constitution.

56. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION

(Malicious Prosecution under 42 U.S.C. § 1983 Against the Individually Named Defendants)

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "56" with the same force and effect as if fully set forth herein.

58. Defendants initiated, commenced and continued a malicious prosecution against plaintiff MARTIN BLEIWAS.

59. Defendants caused plaintiff MARTIN BLEIWAS to be prosecuted without any probable cause until the charges were dismissed on or about September 9, 2015.

60. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Failure to Intervene under 42 U.S.C. § 1983 Against the Individually Named Defendants)

61. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “60” with the same force and effect as if fully set forth herein.

62. Defendants had an affirmative duty to intervene on behalf of plaintiff MARTIN BLEIWAS, whose constitutional rights were being violated in their presence by other officers.

63. The defendants failed to intervene to prevent the unlawful conduct described herein.

64. As a result of the foregoing, plaintiff MARTIN BLEIWAS’ liberty was restricted for an extended period of time, he was put in fear of his safety, he was subjected to handcuffing, and he was humiliated and compelled to appear in criminal court.

65. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983 Against the Individually Named Supervisory Defendants)

66. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “65” with the same force and effect as if fully set forth herein.

67. The supervisory defendants personally caused plaintiff’s constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

68. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable

attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983 Against Defendant City of New York)

69. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "68" with the same force and effect as if fully set forth herein.

70. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

71. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff MARTIN BLEIWAS' rights as described herein. In addition, the New York City Police Department has failed to properly train its employees with regard to proper investigatory methods and the probable cause required to make an arrest, and are also aware that many officers engage in falsification in support of improper arrests. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff MARTIN BLEIWAS.

73. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate

cause of the constitutional violations suffered by plaintiff MARTIN BLEIWAS as alleged herein.

74. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff MARTIN BLEIWAS as alleged herein.

75. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff MARTIN BLEIWAS was unlawfully arrested and maliciously prosecuted.

76. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff MARTIN BLEIWAS' constitutional rights.

77. All of the foregoing acts by defendants deprived plaintiff MARTIN BLEIWAS of federally protected rights, including, but not limited to, the right:

- A. To be free from false arrest/unlawful imprisonment;
- B. To be free from the failure to intervene;
- C. To receive his right to fair trial; and
- D. To be free from malicious prosecution.

78. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Supplemental State Law Claims

79. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “78” with the same force and effect as if fully set forth herein.

80. Within ninety (90) days after the claims herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, Notices of Claim setting forth all facts and information required under the General Municipal Law 50-e.

81. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

82. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

83. Plaintiff has complied with all conditions precedent to maintaining the instant action.

84. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A SEVENTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York Against All Defendants)

85. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “84” with the same force and effect as if fully set forth herein.

86. The defendant officers arrested plaintiff MARTIN BLEIWAS without probable cause.

87. Plaintiff was detained against his will for an extended period of time and subjected to physical restraints.

88. As a result of the aforementioned conduct, plaintiff MARTIN BLEIWAS was unlawfully imprisoned in violation of the laws of the State of New York.

89. As a result of the aforementioned conduct, plaintiff MARTIN BLEIWAS suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

90. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

92. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. Defendant officers made offensive contact with plaintiff MARTIN BLEIWAS without privilege or consent.

94. As a result of the defendant officers' conduct, plaintiff MARTIN BLEIWAS has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

95. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "96" with the same force and effect as if fully set forth herein.

98. Defendant officers initiated, commenced and continued a malicious prosecution against plaintiff MARTIN BLEIWAS.

99. Defendant officers caused plaintiff MARTIN BLEIWAS to be prosecuted without probable cause until the charges were dismissed on or about September 9, 2015.

100. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

102. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered "1" through "101" with the same force and effect as if fully set forth herein.

103. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted

and participated in the arrest of plaintiff MARTIN BLEIWAS.

104. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

105. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

106. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "105" with the same force and effect as if fully set forth herein.

107. Upon information and belief, the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the excessive use of force against and the arrest of plaintiff MARTIN BLEIWAS.

108. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

109. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “108” with the same force and effect as if fully set forth herein.

110. Plaintiff’s injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

111. Defendant City, as employer of the individually named defendant officers, is responsible for their negligence under the doctrine of *respondeat superior*.

112. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Violation of NYS Constitution Article 1 §12)

113. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “112” with the same force and effect as if fully set forth herein.

114. As a result of defendant officers’ conduct, plaintiff MARTIN BLEIWAS was deprived of his right to security against unreasonable searches, seizures, and interceptions.

115. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a result of the foregoing, plaintiff MARTIN BLEIWAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive

damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

WHEREFORE, plaintiff MARTIN BLEIWAS demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: New York, New York
July 8, 2016

BRETT H. KLEIN, ESQ., PLLC
Attorneys for Plaintiff MARTIN BLEIWAS
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: /s/ Brett Klein
BRETT H. KLEIN (BK4744)

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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MARTIN BLEIWAS,

Plaintiff,

15 CV 10046 (ER)

-against-

CITY OF NEW YORK, LEON LIAN, Individually, ALFREDO
TORRES, Individually, GEORGE GOMEZ, Individually,
MIRIAM LORENZO, Individually, DENNIS BOWMAN,
Individually, CHRISTOPHER KENNIS, Individually,
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WOJCIECH LIPINSKY, Individually, PIERRE BARBEE,
Individually, JOHN HAND, Individually, and JOHN and JANE
DOE 1 through 10, Individually (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

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AMENDED COMPLAINT

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132